

GREATER LONDON AUTHORITY

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Department: Planning

Our reference: LDF31/LDD17/LP04/E02/HA01
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Email: [REDACTED]
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Dear Ela,

Re: Examination of the London Borough of Barking and Dagenham. Consultation on the Inspectors' Further Matters, Issues and Questions.

Matter 2 - Spatial Strategy, Housing and Employment Requirements (Strategic Policies SPDG1, SP3 and SP5),

Matter 3 – Area Policies and Site Allocations by area (Area Policies SPP1, SPP2, SPP3, SPP4, SPP5, SPP6, SPP7 and Appendix 2 (C2),

Matter 5 – Design including Tall Buildings (Strategic Policy SP2 and Policies DMD1, DMD2, DMD3, DMD4, DMD5 & DMD7), and

Matter 9 – Economy (Strategic Policy SP5 and Policies DME1, DME2, DME3, DME4 and DME5

Thank you for inviting written statements in advance of the London Borough of Barking and Dagenham Local Plan (LBBD) Examination in Public Stage 2 hearing sessions. LBBD has actively engaged with officers at the Greater London Authority (GLA) to discuss concerns raised in the Mayor's Initial Main Modifications¹, Regulation 19 (2), Regulation 19 and Regulation 18 (2) responses issued in August 2023, November 2021, November 2020 and February 2019 respectively. The Mayor also provided a hearing statement dated 28 June 2022 for the Stage 1 examination hearings.

As you will be aware, development plan documents prepared by London boroughs must be in general conformity with the spatial development strategy for London (referred to as the London Plan) in accordance with S.24 of the Planning and Compulsory Purchase Act 2004 (as amended). The LP2021 was formally published on the 2 March 2021, and now forms part of LBWF's Development Plan and contains the most up-to-date policies.

¹ <https://yourcall.befirst.london/11324/widgets/38986/documents/46185>

In his hearing statement in relation to the Stage 1 hearings the Mayor made it clear that the GLA, working with LBBD officers, had agreed modifications in a Statement of Common Ground (SCG) (referred to as the 'original SCG') that - if implemented - would result in the Local Plan being in general conformity with the London Plan 2021 (LP2021). In the summer of 2023 LBBD consulted on Local Plan Initial Modifications in which the Mayor raised a new general conformity objection in relation to a proposal to accommodate Gypsy and Traveller pitches in the wider Castle Green Strategic Industrial Location (SIL) in the absence of a strategic approach to achieve that (see the Mayor's response to that consultation²).

LBBD and GLA officers have very recently updated the SCG (referred to as the 'updated SCG') to correct errors and introduce some additional proposed modifications to the Local Plan. The process provided an opportunity to provide further clarity where both GLA and LBBD officers considered it necessary and beneficial. The updated SCG was agreed on 28 September and includes some further modifications including –

- Wantz Road Locally Significant Industrial Site (LSIS) reconfiguration
- Correcting a number of errors relating to tall buildings
- The omission of Fresh Wharf (Southern Part) LSIS from Figure 26 and the Policies Map; and
- More up-to-date information on LBBD's industrial pipeline, setting out planning approvals, starts and completions relating to industrial development.

It also highlighted the Mayor's general conformity objection to the proposed introduction of Gypsy and Traveller pitches in the Castle Green SIL,

To be clear, the Mayor's general conformity objection in relation to the proposal to locate Gypsy and Traveller pitches in the Castle Green SIL is unresolved and therefore still remains a general conformity objection.

If there are further proposed modifications to the draft Local Plan and subsequent consultations in the future, the Mayor would review and provide his opinion on the general conformity of the draft Plan at that time.

Mayor of London Statement

Mayor's response to Matter 3, Issue 1 – Area Policies Overall Approach (Area Policies SPP1-SPP7)

Q5. Are MMs necessary to Area Policies SPP1-SPP7 to specify the appropriate height of Tall Buildings in each area? Are such modifications needed to ensure general conformity with the London Plan? Should they be maximum height requirements? (Note: Matter 3, Issue 2 Q.3 Do heights for tall buildings need to be expressed as a maximum rather than a range (PMM7) to be effective? This question is repeated for other area policies too).

In his response to LBBD's second Regulation 19 consultation the Mayor made it clear that the proposed approach to tall buildings was not in general conformity with the LP2021.

² <https://yourcall.befirst.london/11324/widgets/38986/documents/46185>

To address this matter the Mayor provided guidance that – in order to correct the general conformity objection and to meet the requirements of Policy D9 of the LP2021 – LBBB should:

- Ensure that areas that are likely to be acceptable for tall buildings in planning terms are identified as such, and not support proposals for tall buildings outside of those locations;
- Set out appropriate/or a range of appropriate building heights in specific locations;
- Clearly identify on maps, the suitable locations for tall buildings (including areas which genuinely reflect all of the areas where tall buildings are likely to be acceptable) and should avoid ambiguity in doing so.

In the submitted version of the draft Plan some suitable tall building locations had been clearly identified while others had not.

In order to address these matters the Mayor considers that MMs are required and these have been set out in the original and updated SCGs. The proposed modifications in the original SCG set appropriate, or an appropriate range, of building heights in place Policies SPP1-SPP7 and this is highlighted in proposed modification PMM82 to Policy DMD2 which lists each of those place policies. The proposed modifications specifically meet the requirements of Policy D9B2 of the LP2021. Proposed modification PMM82 is clear that Figure 20 will be updated to illustrate appropriate building heights using labels once these have been agreed and confirmed as part of the examination process. Proposed Figure 20 in PMM82 clearly identifies the tall building locations but could be improved by clearly delineating the extent of individual tall building zones relating to SPP1 through to SPP4. Doing so would set out more clearly where appropriate building heights in one zone would end and another would begin. The intention to do that has now been incorporated as a proposed modification in the updated SCG and that would help to bring the approach into closer alignment with the LP2021.

The tall building locations set out in Figure 20 should also be clearly illustrated on the Policies Map, as stated in Section 3 of the original SCG. The updated SCG now also includes a commitment that Figure 20 will be updated to include the extent of each of the tall building locations relating to the place policies SPP1, 2, 3 and 4 and that this will be included in an updated version of the Policies Map.

Policy D9B2 of the LP2021 states that any such locations (which are considered to be suitable for tall buildings) and appropriate building heights should be identified on maps in Development Plans. The policy specifically uses the term ‘appropriate building heights’. This implies some flexibility which could include a range of ‘appropriate building heights’. This is considered to be practical in terms of enabling boroughs to focus the tallest buildings in a particular more central part of a tall building zone and perhaps seeking lower building heights towards the edges of that zone, if that is indeed what a borough wishes to do.

Maximum building heights could be helpful in situations where an absolute is required and necessary. For instance, maximum building heights could be used to prevent the development of tall buildings from obstructing one of London’s strategic views, as set out in the London View Management Framework, or where maximum building heights have been set by the Civil Aviation Authority.

Mayor's response to Matter 5, Issue 1 - Whether the Council's approach to design and Tall Buildings is justified, effective, consistent with national policy and in general conformity with the London Plan in relation to the approach to design

Policy DMD2 Tall Buildings

Q16. Is Policy DMD2 in general conformity with Policy D9 of the London Plan? Have the GLA's concerns been overcome?

If the proposed modifications contained within the updated SCG relating to tall buildings are incorporated into Policy DMD2 of the Local Plan the Mayor is of the opinion that they would address his earlier general conformity objections.

Q17. Are the locations for Tall Buildings clearly identified on the Policies Map?

Suitable tall building locations were not included in the submitted version of the Local Plan for examination. LBBD officers are aware that this is necessary, and the requirement is included in Section 3 and in Figure 20 of the original SCG. The Mayor notes that modification PMSP5 to the Policies Map has been proposed and this will include mapping out clearly the suitable tall building locations listed in Policy DMD2. The updated SCG now also includes a further commitment that Figure 20 will be updated to include the extent of each of the tall building locations relating to the place policies SPP1, 2, 3 and 4 and that these too will be incorporated into the updated Policies Map.

Q18. Is it clear that Figure 20 does not form part of the Policies Map, but is for illustrative purposes only? Does this Figure require updating?

Figure 20 should include a note that the tall building locations in the image are set out clearly in the Policies Map and it should also delineate the individual tall building zones for SPP1, 2, 3 and 4 which LBBD have committed to doing in the updated SCG.

Q19. Does the definition of a Tall Building in section 1 require amendment? Is it consistent with how Tall Buildings are referred to in Area Policies? Are there discrepancies in proposed modifications (PMM85 and PMM87)?

Yes the definition requires an amendment. The original and updated SCGs include a proposed modification to the tall building definition that - if incorporated into the Plan - will be aligned with the definition contained in Policy D9 of the LP2021. The proposed modification includes the deletion of an exception stating that 'Unless otherwise specified in localized Masterplan SPDs, tall buildings in the borough are buildings that are taller than...'. LBBD are now also setting out through proposed modification PMM82 that tall buildings are those which are greater than 30m high measured from the ground level to the very top of the building. It is noted that proposed modifications to the area policies for SPP4 (PMM43) and SPP6 (PMM61) include a line which states that "Appropriate heights would be no more than 18 metres due to the low density and sensitivity of this area". This is inconsistent with the tall building definition of 30m and should instead state that "Appropriate heights would be no more than ~~18~~ 30m due to...". The updated SCG now includes this proposed modification to correct this inconsistency.

Policy D9 of the LP2021 does not prevent boroughs from limiting building heights in some particularly height sensitive areas to a height which falls below the borough's proposed tall

building definition of 30m. LBBD are proposing modifications to that effect in SPP5 Dagenham East and SPP7 Becontree Heath and Rush Green where the intention is to limit heights in those areas to 18m. In this light these elements should not be considered as inconsistencies.

The Mayor's response to Matter 2, Issue 3 – Whether the target of 20,000 new jobs is justified, clear as to how those jobs will be delivered over the plan period and whether the overall approach to employment is justified, effective, consistent with national policy, and in general conformity with the London Plan (Strategic Policies SPDG1 and SP5)

Q3. Does the Plan clearly identify where industrial land is to be released or re-designated? Is the Council's approach to the release of industrial land for other forms of development justified and in general conformity with the London Plan (Policy E4 and E7)? Are associated MMs needed?

The Mayor considers that MMs are needed, and these are in the updated SCG. The updated SCG includes a proposed modification which will replace Table 1 in Policy DME1 and introduce another into a new Appendix 5 of the draft Plan. Proposed modification PMM105 includes the replacement Table from the original SCG which has been revised in the updated SCG. The table that would be introduced into Appendix 5 as a result of the updated SCG sets out clearly how industrial land is to be reconfigured over the Plan period. Of particular note, is that the table clearly illustrates the intention to only release three areas of SIL over the course of the Plan period in the River Road area, specifically parcels RR8, RR9 and RR10. Two of which will become LSIS and the other is to be completely released from its industrial designation. PMM105 includes a proposed modification from the original SCG which explains the reconfiguration of these 3 parcels of SIL. Both Table 1 and Appendix 5 set out a framework through which industrial development can be guided and monitored.

The Council wishes to have flexibility in bringing forward industrial development and the GLA has worked with LBBD officers to achieve that. It is the Mayor's objective that SIL is managed in a strategic way so that it is in general conformity with Policy E5 of the LP2021. A coherent plan-led approach to industrial intensification and consolidation is required across the borough ensuring demand for all types of industrial use is met and eroded SIL capacity is replaced. Table 1 and Appendix 5 in the updated SCG are industrial capacity frameworks which provide the basis for decision making in relation to industrial proposals. For them to be effective they need to be reviewed and updated regularly and they should be used consistently.

Resulting SIL boundary changes can only be made through the local plan. London Plan Policy E5(B)4 states that SIL release must be adopted as policy in a Development Plan and that is why LBBD have incorporated very clearly the intention to limit the release of SIL to the three parcels identified earlier.

The Mayor considers that if the proposed modifications contained in the updated SCG are included in the final version of the Plan, the Council's approach to industrial land would be in general conformity with the LP2021.

Q5. Does the Plan set out effective measures for the planning, monitoring and management of industrial land capacity³ and is the Council's approach in general conformity with the London Plan?

Proposed main modification PMM105 introduces a replacement Table 1 into Policy DME 1. The updated SCG includes a revised and more up-to-date version of that table and also proposes a new table to be included as Appendix 5. These tables set out the industrial designations that would result from the adoption of LBBD's Local Plan and proposed Appendix 5 sets out indicative industrial capacities that could potentially be brought forward on those sites. In addition to that, Appendix 5 clearly shows 7 parcels of industrial land where designation changes are proposed, including the release of three areas of SIL, three new areas of LSIS and the de-designation of one area of LSIS.

Proposed modification PMM105 introduces part 15 to Policy DME1 which is clear in terms of the Council's proposed approach and commitment that there will be no deficit of industrial capacity through a regular process of planning, monitoring and reviewing industrial development throughout the Plan period. The Council also make a commitment to regularly share monitoring information with the GLA which is welcomed.

Applicants will also be expected to demonstrate how their planning proposals within identified industrial areas contribute towards achieving the delivery of the industrial projections contained in Table 1 and Appendix 5.

In the updated SCG new Appendix 5 sets out in detail what industrial development LBBD could deliver in the short, medium and long term and makes it clear that it is to be used as the baseline for monitoring purposes.

For the combination of reasons set out above the Mayor considers that LBBD have provided sufficient information, detail and commitments to plan, manage and monitor the borough's industrial capacity over the Plan period. These measures are considered to be sufficient to bring the approach into general conformity with the LP2021. Nonetheless, some explanation about how the framework would be used in decision making would be considered useful and would ensure a consistent approach.

Q6. Can the Council demonstrate that the proposed sources of industrial land supply and their capacities are realistic and deliverable?

As set out in our answer to Q5 above, the Council will provide, through Table 1, potential sources of industrial capacity/land supply. New Appendix 5 in the updated SCG will contain a table setting out in greater detail proposed sources of industrial land supply. It also contains information regarding what is in the pipeline in terms of approved proposals for industrial development taken from the borough's Industrial Land Strategy. The updated SCG contains more up-to-date information on the industrial pipeline too, and LBBD intend to introduce this information as Appendix C in the Local Plan. This data provides a clear indication that the market for industrial development in the borough is good and that the potential for industrial intensification, co-location and densification is realistic.

³ Policy E4(C) of the London Plan

This not only illustrates that industrial development is coming forward and resulting in increases in industrial capacity but it also demonstrates LBBD's commitment to monitoring industrial development. The data contained in proposed Appendix C could be improved by making it clearer whether individual schemes relate to SIL or LSIS.

Of importance too is the fact that as stated in the updated and original SCGs the Council own 81.8ha of SIL in the borough in the River Road and Dagenham Dock areas and can effectively facilitate industrial intensification in these areas over the course of the Plan.

It is the Mayor's opinion that the pipeline information is sufficient to demonstrate that LBBD can deliver industrial development that will meet the borough's needs and allow for the reconfiguration of the three identified areas of SIL at RR8, RR9 and RR10 that are to be released. The borough should use the proposed industrial framework effectively and consistently to reconfigure other industrial areas in a coordinated way that will not lead to deficits in industrial capacity as set out in proposed new part 15 to Policy DME1.

The Mayor's response to Matter 3, Issue 3 – Thames Riverside (Area Policy SPP2)

Note 2: The Council has proposed MMs which identify a broad location for a Gypsy and Traveller site in this area, which is not currently detailed in the Plan. The soundness of the Council's overall approach to meeting Gypsy and Traveller accommodation needs including its site selection process will be considered under Matter 8. However, should the Council's proposed MM in that regard be found necessary, the need for consequential MMs to Strategic Policy SPP2 will also need to be considered.

Q9. Is it clear which site allocations will contribute to the delivery of the area strategy? Are the site allocations in the Thames Riverside Area justified, effective, consistent with national policy and in 'general conformity' with the London Plan, having regard to its local context? In addition, specifically:

- a. Castle Green CF – Are MMs necessary to clarify the uses which will be permitted on this site? Is it clear the site is to be retained as SIL? Should criteria 5 of Policy SPP2 explain how 10,000 homes will be delivered without compromising the SIL designation?**
- b. Thames Road CI – Is the release of 30.8ha of SIL and associated industrial floorspace clearly articulated? Should mitigation be specified (see SOCG GLA)?**

The updated SCG is clear that it is the Council's intention to release only three parcels of SIL over the course of the Plan period. Castle Green SIL is not one of them. This is set out in proposed modification PMM105 to Policy DME1 and is also set out clearly in the updated SCG. The proposed modification to part 2 of the policy states –

“Over the course of the Plan period it is the Council's intention to only release three parcels of SIL. These are within Thames Road, which is located within the River Road Employment Area. Proposed industrial land designations are clearly illustrated on the policies map. The clusters are listed in Table 1 as RR8, RR9 and RR10 and these will be clearly defined on an interactive policies map. Part of RR8 will be de-designated from SIL to LSIS and part will be intensified as

SIL. Some of RR9 will be de-designated from SIL to LSIS and RR10 will be released completely for residential. The reconfiguration of this industrial land will result in a loss of 30.8ha of SIL.”

The Council’s intentions with respect to release of SIL capacity at Thames Road are explicit and clear. The updated SCG contains greater detail regarding how SIL capacity is to be reprovided to offset the release of the SIL designations of RR8, RR9 and RR10. The updated SCG sets out that 26,636sqm of net SIL floorspace will be reprovided in the short term (to 2027). The Mayor is satisfied that LBBD through the updated SCG have made it clear how the reconfiguration of SIL within Thames Road will take place and how SIL reprovion will come forward. They have also demonstrated that the approach is realistic and deliverable.

With regard to Castle Green SIL it is noted that new Table 1 to be included into Policy DME1 through the same proposed modification is also clear that indicative future capacity at Castle Green could result in increases in industrial capacity within that SIL and there is no intent to release any parts of that SIL during the course of the Plan period. It is the Mayor’s understanding that the Council are looking beyond this Plan period to explore the potential to redevelop the Castle Green area for non-industrial uses. If this is indeed the case, clarity on that point would be useful. It is important to note that resulting SIL boundary changes can only be made through the Local Plan. London Plan Policy E5(B)4 states that SIL release must be adopted as policy in a Development Plan. The draft Plan does not set out how Castle Green SIL can be reconfigured to accommodate Gypsy and Traveller pitches and this is why the Mayor raised this as a general conformity objection in his response to LBBD’s consultation on the Initial Modifications to the Local Plan in August.

The Mayor’s response to Matter 9, Issue 1- Are Policies SP5, DME1, DME2, DME3, DME4 and DME5) justified, effective, consistent with national policy and in general conformity with the London Plan with regard to their approach to the economy

Policy SP5 Promoting inclusive economic growth

Q1. Does Strategic Policy SP5 provide sufficient protection for Strategic Industrial Locations (SIL) and Locally Significant Industrial Sites (LSIS)? Are MMs required to section 3 for effectiveness to make clear that land will be retained, to ensure there is capacity to meet identified need?

Q2. Is Strategic Policy SP5 sufficiently clear with regard how much SIL LSIS and which sites are to be released over the plan period?

Policy DME1 provides policy protection for SIL and LSIS and for that reason the inclusion of a cross reference in part 3 of Policy SP5 to Policy DME1, and specifically Table 1, could be useful here. A cross reference to new Appendix 5 would also be welcomed which sets out the framework for bringing forward industrial development in the borough over the lifetime of the Plan, and should form the basis for decision making in relation to industrial development proposals.

Q7. Is Policy DME1 in general conformity with the London Plan?

If the proposed modifications set out in the updated SCG are implemented the Mayor considers that Policy DME1 would be in general conformity with the LP2021.

Q8. Is the Policy DME1 sufficiently clear with regard how much SIL and which sites are to be released over the plan period??

Proposed modifications contained in the updated SCG in relation to Policy DME1 make it clear which areas of SIL are to be released over the Plan period. The proposed modifications identify three parcels of SIL that are intended to be released. These are RR8, RR9 and RR10 taken from the Industrial Land Strategy. This is also highlighted in the table to be included in new Appendix 5 as set out in the updated SCG.

Q9. Does criterion 12a) sufficiently clear to ensure targets are met and ensure the protection of Strategic Industrial Locations and Locally Significant Industrial sites? Are MMs required to remove reference to re-provision?

In the proposed modifications set out in the updated SCG it is clear that the council intend to limit the release of SIL to 3 specific areas. This will be set out in part 2 of the modified policy. The updated SCG also proposes to introduce a new part 5 to the Policy. This makes it clear that the approach will be one that does not result in deficits of industrial capacity through a regular process of planning, monitoring and reviewing industrial development through the Plan period. It also includes a commitment to share this information with the GLA. These modifications will ensure the continued protection of LSIS and SIL (beyond the three areas identified for release) across the borough.

Q13. Is it clear how Policy DME1 will be monitored? How will the Council monitor industrial capacity? Should this be more clearly specified in the Policy or its justification text in the interests of effectiveness?

For the approach that LBBD want to implement it is important that effective monitoring is in place. Appendix 5 which includes a new table setting out a framework within which LBBD can reconfigure its industrial land includes pipeline data related directly to specific industrial sites. This forms the basis from which LBBD can continue to effectively monitor industrial development across the borough. The updated SCG also contains further up-to-date monitoring of pipeline industrial development (approved, started and complete schemes) and the intention is to include this data as Appendix C in the Local Plan. While this indicates that LBBD are indeed effectively monitoring industrial development in the borough it could be represented more efficiently, making clear overall gains and losses in SIL and LSIS. It should be clear how deficits will be monitored and identified to ensure that proposed part 15 of Policy DME1 can be implemented.

Q14. What is the purpose of Table 1? How does it relate to the proposed site allocations? Should each site include a reference, details of their designation and the existing floorspace? Is Table 1 up-to-date, justified and effective?

Table 1 is to be replaced as set out in the updated SCG. New Table 1 is a simplified version of the new table to be included in Appendix 5. New Table 1 relates directly to the site allocations and contains finer detail including data relating to smaller site parcels (i.e. RR9, RR10 etc) and current floorspace figures. Appendix 5 will supplement this by providing more detail on indicative phasing while indicating the typology of development, whether it be through more organic densification or through comprehensive intensification.

Some further explanation of how Table 1 should be used by developers and how it will be used by the Council could be useful.

GLA officers will continue to offer their support going forward. I hope this statement can help inform the Examination of LBBD's Local Plan. If you have any questions in relation to this Statement, please contact Hassan Ahmed at [REDACTED].

Yours sincerely

[REDACTED]

Lucinda Turner

Assistant Director of Planning

Cc: Unmesh Desai, London Assembly Constituency Member
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